

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 07/01/2026

Case #	Case Name	Tentative
		TENTATIVE RULING Case: Calendar No.: Date:
01469211	Collao – Conservatorship	TENTATIVE RULING Case: Collao – Conservatorship 01469211 Calendar No.: 6 Date: 07/01/2026 MOTION TO BE RELIEVED AS COUNSEL (ROA 91) Attorney Frank O. Fox seeks to be relieved as counsel for Conservator Janet D. Allen. An attorney's right to withdraw as counsel is conditioned upon compliance with California Rules of Court, Rule 3.1362 and, where applicable, Orange County Local Rule 601.21. Counsel has not filed all three forms (i.e., MC-051, MC-052, and MC-053) required by California Rules of Court, Rule 3.1362. Specifically, counsel has not filed the Order Granting

		Attorney's Motion to Be Relieved as Counsel – Civil (MC-053). All three mandatory forms must be filed <u>and</u> served on the client <u>and</u> on all persons who have appeared in this action. Here, the proof of service does not reflect service of the Order Granting Attorney's Motion to Be Relieved – Civil (MC-053), and service was made only to the client. Counsel has also not complied with Orange County Local Rule 601.21, which provides as follows: "If an attorney wishes to withdraw from a probate proceeding as attorney of record for the estate representative or any other fiduciary, in addition to the requirements under CCP 284 and CRC 3.1362, the attorney must have a citation issued and served on such motion or petition directing the representative to appear before the court to show cause why the motion or petition should not be granted or why the representative has not taken the steps to complete his or her duties." The client is the Conservator of the person and estate of Michelle Collao, and the court's records do not reflect that a citation was issued to the client. Counsel must file a Citation – Probate (DE-122/GC-322). Once the citation is signed by the court, counsel must have it served on the client in the same manner as a summons. (See Code Civ. Proc. § 415.10.) If the client appears at the hearing, the motion may be granted. Otherwise, the motion will be continued once for compliance with the foregoing.
01429870	Ware – Trust	TENTATIVE RULING Case: Ware – Trust 01429870 Calendar No.: 7 Date: 07/01/2026 MOTION TO ENFORCE SETTLEMENT AGREEMENT AND ENTER JUDGMENT (ROA 49) Before the court is a motion by Petitioners Julia Ann Morgan and Pamela M. Knapp (collectively, "Petitioners") for an order to enforce the settlement agreement and enter judgment pursuant to Code of Civil Procedure section 664.6.